BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA -- SACRAMENTO DIVISION

BRENDAN NGWA NFORBI, Plaintiff, v. **BEST BUY CO., INC.,** **a Minnesota corporation,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** Penal Code § 290.46(j)(2)(E), (j)(4)(A) *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

I. NATURE OF THE ACTION

1. This action arises from an accepted Best Buy warehouse hire at 6653 Hopkins Road, Tracy, California.

2. On October 17, 2023, Best Buy offered Plaintiff the General Warehouse Worker / 2nd Shift position at $22.60 per hour, requisition 928556BR.

3. Plaintiff accepted. Best Buy later wrote, “Congratulations on accepting your offer.”

4. The same afternoon, Best Buy required a background-check authorization that

identified First Advantage as its screening vendor, and First Advantage issued a Best Buy drug-test order under account BEST BUY 11759586.

5. Plaintiff completed the drug-screening requirement. Best Buy then ceased communication and prevented Plaintiff from beginning the accepted warehouse job.

6. Plaintiff alleges on information and belief, and on the transaction-specific facts stated below, that First Advantage furnished Best Buy information concerning Plaintiff disclosed pursuant to Penal Code § 290.46, including Plaintiff's California registry information, and that Best Buy used that information for the employment decision.

7. Plaintiff does not allege that Best Buy was barred from using independently and lawfully obtained conviction information. His claim concerns use of information disclosed pursuant to § 290.46 itself.

8. Plaintiff does not possess Best Buy's transaction-specific report and does not allege its source-field wording as known fact.

II. JURISDICTION AND VENUE

9. This Court has original jurisdiction under 28 U.S.C. § 1332(a).

10. Plaintiff is a citizen of California.

11. Best Buy Co., Inc. is incorporated in Minnesota and has its principal place of business in Richfield, Minnesota. It is therefore a Minnesota citizen for diversity purposes.

12. The amount in controversy exceeds $75,000, exclusive of interest and costs, based

in good faith on the lost accepted employment compensation at the documented $22.60 hourly rate according to proof, other consequential economic loss, and the additional and exemplary relief authorized by Penal Code § 290.46(j)(4)(A).

13. The offer presently in Plaintiff's files does not establish weekly hours, an exact start date, or an assured employment duration. Plaintiff does not invent those figures.

14. Plaintiff does not rely on FCRA or ICRAA remedies, or on the optional civil-penalty remedy in § 290.46(j)(4)(A), to establish the amount in controversy.

15. Plaintiff has Article III standing because he alleges a concrete economic injury—the loss of an accepted job and resulting compensation—caused by Best Buy's alleged prohibited employment use and redressable by damages.

16. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred at or concerned the Tracy, California warehouse in San Joaquin County.

17. Under Eastern District of California Local Rule 120(d), civil actions arising in San Joaquin County are commenced on the Sacramento side of the District.

III. PARTIES

18. Plaintiff Brendan Ngwa Nforbi is a natural person and California citizen residing in San Joaquin County.

19. Defendant Best Buy Co., Inc. is a Minnesota corporation doing business in California.

20. Best Buy's October 17, 2023 screening authorization identifies Best Buy Co., Inc. at its Richfield, Minnesota address, and the First Advantage drug-test order lists BEST BUY at that same address.

21. On information and belief, Best Buy Co., Inc. offered the job, caused the employment screening to be ordered, and made or controlled the hiring decision.

22. If Best Buy's personnel or screening records identify a different affiliate as the actual employer or report user, Plaintiff will conform the defendant before filing rather than rely on brand-level pleading.

IV. THE APPLICATION, OFFER, AND SCREENING

23. On October 13, 2023, Best Buy acknowledged Plaintiff's application for General Warehouse Worker / 2nd Shift at $22.60 per hour, requisition 928556BR.

24. The job involved warehouse / distribution work, including processing and moving merchandise. It was not a commercial motor-vehicle driving assignment.

25. On October 17, 2023 at approximately 3:47 p.m., Jose Tapia, identified as General Manager, sent Plaintiff a congratulations offer for the position at 6653 Hopkins Road, Tracy, California.

26. The offer workflow required Plaintiff to complete Candidate Zone acceptance, background-check information, and background-check authorization.

27. Plaintiff accepted the offer.

28. At approximately 4:22 p.m., Best Buy sent a background-authorization confirmation identifying First Advantage Consumer Center.

29. At approximately 4:30 p.m., First Advantage issued a Best Buy drug-test order, Q09078711, under account BEST BUY 11759586.

30. Plaintiff completed the drug-screening requirement.

31. At approximately 5:31 p.m., Best Buy wrote, “Congratulations on accepting your offer.”

32. Plaintiff was publicly listed on California's Megan's Law internet website at the time of the background-screening process.

33. After Plaintiff completed the required screening steps, Best Buy ceased communication and did not permit him to begin the accepted warehouse job.

34. Best Buy did not communicate an independent post-screening reason for ending the hire.

V. TRANSACTION-SPECIFIC FIRST ADVANTAGE EVIDENCE

35. First Advantage's role in the Best Buy transaction is documentary, not inferred from another employer's practices.

36. Best Buy's October 17 background-check communication expressly identified First Advantage Consumer Center.

37. The same afternoon, First Advantage issued a Best Buy-specific drug-test order identifying the BEST BUY account.

38. Plaintiff does not presently possess the Best Buy-specific employment consumer report, its source fields, adjudication data, access logs, or decision records.

39. On information and belief, First Advantage prepared or furnished an employment-screening report or result concerning Plaintiff to Best Buy as part of the same hiring process.

VI. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

40. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is Best Buy's report, and he does not attach or describe those reports as if they were.

41. On information and belief, the Best Buy-specific screening contained Plaintiff's information disclosed pursuant to Penal Code § 290.46, including his California registry information.

42. On information and belief, Best Buy received, accessed, considered, or used that § 290.46 information for a purpose relating to employment.

43. Plaintiff alleges that the registry information was a substantial factor in Best Buy's decision to prevent him from beginning the accepted Tracy warehouse employment.

44. The factual basis includes the written offer, documentary identification of First

Advantage in the same transaction, Plaintiff's completion of the required screening process, his contemporaneous California registry listing, the cessation of the hire after screening, and the absence of a communicated independent reason.

45. The exact report labels, source wording, adjudication status, access timestamps, internal reason codes, and decisionmaker identity are recorded in Best Buy's and First Advantage's systems.

VII. SOURCE-SPECIFIC LIMIT OF THE CLAIM

46. Plaintiff does not plead a claim based on the abstract existence of his conviction or registration status. He pleads actual use of information disclosed pursuant to § 290.46.

47. Independently obtained court-record information is different from prohibited employment use of Megan's Law website information. This complaint alleges the latter.

48. If the Best Buy-specific report is properly considered and contradicts Plaintiff's information-and-belief allegation, Plaintiff's theory must conform to that document.

VIII. STATUTE OF LIMITATIONS

49. The alleged prohibited employment use occurred on or after October 17, 2023.

50. Plaintiff seeks the compensatory, additional, exemplary, and fee remedies authorized by Penal Code § 290.46(j)(4)(A) for the statutory liability alleged here.

51. Plaintiff proceeds under Code of Civil Procedure § 338(a)'s three-year period for a liability created by statute. On that theory, three years from October 17, 2023 is October 17,

2026.

52. Because § 290.46(j)(4)(A) also contains an optional civil-penalty remedy, Plaintiff does not seek or rely on that civil-penalty remedy in this opening complaint and does not use it to establish timeliness or federal jurisdiction.

53. The § 290.46 claim should therefore be filed before October 17, 2026 if Plaintiff elects to proceed on the present limitations theory.

IX. CAUSE OF ACTION

Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

Penal Code § 290.46(j)(2)(E), (j)(4)(A)

54. Plaintiff realleges paragraphs 1 through 53.

55. Plaintiff is a person as to whom information is disclosed on California's Megan's Law internet website pursuant to Penal Code § 290.46.

56. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for a purpose relating to employment except where authorized by § 290.46(j)(1) or another provision of law.

57. On information and belief, information disclosed pursuant to § 290.46 concerning Plaintiff was furnished or made available to Best Buy through its employment-screening process.

58. On information and belief, Best Buy received, accessed, considered, and used that information for a purpose relating to employment.

59. The use was a substantial factor in Best Buy's decision to deny, withdraw, end, prevent, or not finalize Plaintiff's accepted Tracy employment.

60. Plaintiff is unaware of any law authorizing Best Buy to use information disclosed pursuant to § 290.46 for the General Warehouse Worker position.

61. Best Buy thereby violated Penal Code § 290.46(j)(2)(E).

62. Penal Code § 290.46(j)(4)(A) authorizes actual damages, an additional amount within the statutory range, attorney's fees, and exemplary damages upon the required showing, among other remedies.

63. Plaintiff does not seek preventive relief under § 290.46(j)(4)(B) in this opening complaint.

X. DAMAGES

64. Plaintiff suffered economic harm including loss of the accepted $22.60-per-hour employment and consequential loss according to proof.

65. Plaintiff seeks actual damages and the additional and exemplary relief legally available under § 290.46(j)(4)(A), without duplicative recovery.

66. Plaintiff does not plead a guaranteed number of weekly hours, start date, or employment duration that his current records do not establish.

XI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests judgment against Best Buy Co., Inc. for:

A. Actual damages according to proof;

B. The additional amount authorized by Penal Code § 290.46(j)(4)(A);

C. Exemplary damages to the extent authorized and proven;

D. Attorney's fees if counsel later appears and the statute permits recovery;

E. Taxable costs;

F. Prejudgment and postjudgment interest as allowed by law; and

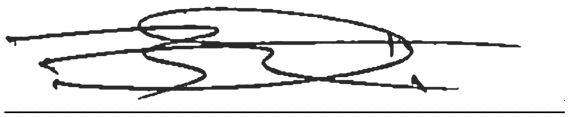
G. Such other nonduplicative relief as the Court deems just.

XII. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 15, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona